

**Court No. - 41**

**Case :-** CRIMINAL REVISION No. - 956 of 2005

**Petitioner :-** Joginder Singh

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Mayank Agrawal

**Respondent Counsel :-** Govt. Advocate,R.Saxena

**Hon'ble Ashok Kumar Roopanwal,J.**

Passed over on the illness slip of Mr. Mayank Agrawal, learned counsel for the revisionist.

Stay is vacated.

**Order Date :-** 24.11.2010

T. Sinha

Reserved

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**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Mayank Agrawal

**Respondent Counsel :-** Govt. Advocate, R. Saxena

**Hon'ble Ashok Srivastava, J.**

This revision has been directed against the summoning order dated 5.1.2005 passed in Criminal Case No. 4 of 2005 by learned Addl. District & Sessions Judge, Court No. 7, Aligarh.

The brief facts of the case are that opposite party no. 2, A.K. Gupta, filed a complaint before learned lower court on 5.1.2005 with certain allegations which were punishable under Section 135/138 of The Electricity Act, 2003 readwith Section 379 I.P.C. The learned Judge perused the complaint and heard the learned counsel for opposite party no. 2. Thereafter, as he was of the opinion that there was substance in the matter, he took the cognizance of the case and issued non-bailable warrant against the revisionist. Feeling aggrieved by this order, the revisionist has filed this revision. The said complaint was filed under the provisions of Section 200 Cr.P.C. and it was filed by a public servant acting in the discharge of his official duties, therefore it appears, that the learned Judge did not feel it necessary to examine opposite party no. 2 under Section 200 Cr.P.C. and after perusing the complaint and other papers filed with it straight away summoned the accused through a non-bailable warrant.

This revision was listed on 1.12.2010. On that date learned counsel for the revisionist and learned A.G.A. were present but no one was present on behalf of opposite party no. 2.

Heard learned counsel for the revisionist and learned A.G.A.

Learned A.G.A. has opposed this revision.

It has been argued from the side of the revisionist that the order impugned herein is perverse as there was nothing on record on the basis of which the revisionist could have been summoned under Section 135/138 of The Electricity Act, 2003 readwith Section 379 I.P.C.

My attention has also been drawn towards Section 39 of Indian Electricity Act, 1910. This section deals with theft of energy and the relevant portion of

it is "*whoever dishonestly abstracts, consumes or uses any energy shall be punishable with imprisonment for a term which may extend to three years, or with fine*". Learned counsel for the revisionist argued that the learned Judge has not examined whether the action on the part of the revisionist was dishonest or not. In this connection, he drew my attention towards **AIR 1967 Supreme Court 349, Ram Chandra Prasad Sharma and others Vs. State of Bihar and another.**

I have gone through this case law but in the facts and circumstances of the case in hand the law laid down by the Apex Court in it is totally inapplicable. Moreso, the Indian Electricity Act, 1910 has been repealed by Section 185 of the Electricity Act, 2003. Even if for the sake of argument it is presumed that the said Act of 1910 is in force today, even then at the stage of summoning of an accused under the provision of Section 204 Cr.P.C., the intention is not to be looked into. It should be mentioned here that intention is often locked in the heart of the accused and even during the course of trial it may come out or it may not. These are the actions of the accused which disclose his intention as it is difficult for a Court to peep into the heart of an accused.

In these circumstances neither Section 39 of the Indian Electricity Act, 1910 nor case law mentioned above, have got any relevance in the matter.

My attention has also been drawn by learned counsel for the revisionist towards definition Clause 2.2 (av) where theft has been defined. This definition has been quoted from Uttar Pradesh Electricity Supply Code, 2002. This Code has absolutely no relevance because the Electricity Supply Code details the obligations of the licensee and consumers towards each other for the purpose that the licensee may provide efficient, cost-effective and consumer friendly service to the consumer. I do not know as to why this provision has been quoted here by the learned counsel for the revisionist. In these circumstances, the case law **2009 (2) AWC 1189 D.B., Allahabad High Court**, has no relevance in the facts and circumstances of the present case.

It is settled principle of law that while passing an order for summoning an accused under Section 204 Cr.P.C., a Judge is not required to give the reasons in detail. Despite in the instant case, reasons as given by the learned Judge are sufficient.

In the instant case, the learned Judge has issued non-bailable warrant straight

away against the revisionist. It is not proper. The Judge should have issued summons to the revisionist at the initial stage.

On the basis of the above discussion, it is held that the summoning order is legal and there is no illegality or perversity in it except the portion of the order in which the learned Judge has directed for issuance of a non-bailable warrant against the revisionist and therefore the order as far as it relates to issuance of a non-bailable warrant is set aside.

The revision is partly allowed. The revisionist is directed to appear before the learned lower court on 3.1.2011 to stand trial and the learned Judge shall proceed further to dispose of the same in accordance with law. The stay order, if any, stands vacated. It is made clear that if the revisionist does not appear before the learned lower court on the date above specified, it will be open to the learned Judge to proceed further in accordance with law to ensure the presence of the revisionist accused before him.

If the revisionist is not on bail he may move a bail application before the Court concerned who will dispose of the same in accordance with law.

Let a copy of this order be sent to the learned lower court immediately for information and necessary action.

**Order Date :- 3.12.2010**

S.B.